

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

202200573680CUBC: Joseph Enad vs. American Honda Motor Co Inc
07/09/2026 in Department 44
Motion for New Trial Due to Defendant's Counsel's Unauthorized Practice of Law

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiffs, Joseph Enad and Swanie Enad (“Plaintiffs”), Motion for a New Trial Due to Defendant’s Counsel’s Unauthorized Practice of Law (“Motion”)

Tentative Ruling:

Plaintiff’s Motion is DENIED.

I. Relevant Background

A. Substantive Background

Plaintiffs filed a lawsuit against Defendant, American Honda Motor Co. Inc. (“Defendant”) on December 22, 2022, alleging several causes of action under the Song-Beverly Consumer Warranty Act (“SBA”).

On January 5, 2026, the Court granted Defendant’s ex parte application to admit Mr. Nicholas G. Even pro hac vice.

The matter came on for a four-day jury trial on April 15, 16, 20, and 21, 2026, in Department 44 of the Ventura County Superior Court. Defendant was present through and represented by attorneys Mr. Even and Ms. Kamalani Tydingco on the first day of trial. On the first day of trial, Mr. Even acted as lead trial counsel, and Ms. Tydingco sat in the second chair. On the other three days of trial, Ms. Tydingco was not present and Mr. Even was the only attorney appearing for Defendant.

Plaintiffs were represented throughout trial by attorney Mr. Mani Arabi.

As Plaintiffs' motion concedes, Mr. Arabi did not object to Mr. Even's appearance as an unsupervised out-of-state attorney who had been admitted pro hac vice. Neither do Plaintiffs' moving papers include any prejudice caused by Mr. Even's representation of Defendant during the pendency of trial. Mr. Even avers that prior to and throughout trial he was in communication directly with other attorneys to include California attorney Brian Takahasi from his firm to ensure he "was prepared and properly apprised of California law and procedures to effectively represent AHM before and at trial." (Even Decl. ¶¶ 3-4; Takahasi Decl., ¶¶ 6-9.)

On the last day of trial, April 21, 2026, the matter was submitted to the jury, and on the same day, the jury returned the verdict, which was rendered against the Plaintiffs and in Defendant's favor on the two pending counts under the SBA.

Judgment was entered on May 4, 2026.

B. Procedural History

On May 20, 2026, Plaintiffs filed a notice of intention to move for a new trial.

On June 1, 2026, Plaintiffs filed the Motion.

On June 2, 2026, the Court provided notice that the Motion was set for hearing on July 9, 2026, at 8:20 a.m. in Department 44 of the Ventura County Superior Court.

On June 24, 2026, Defendant filed an opposition.

Plaintiffs did not file a Reply brief.

II. Discussion

A motion for new trial may be granted only on statutory grounds, which materially affect the substantial rights of the aggrieved party. (*Ajexo, Inc. v. E*Trade Fin. Corp.* (2020) 48 Cal.App.5th 129, 187.) The principal seven grounds are set forth in Code of Civil Procedure section 657(1)-(7). These seven grounds are, in summary, 1) an irregularity that prevents a party from having a fair trial; 2) Jury misconduct; 3) Accident or surprise; 4) Newly discovered evidence that could not have been produced at trial; 5) Excessive or inadequate damages; 6) Insufficient evidence to justify the verdict; 7) Errors in law that occurred at trial and were excepted to by the moving party. (Code Civ. Proc. § 657.)

Under Section 657(1), the term “irregularity in proceedings” has been broadly interpreted to encompass many forms of error or and misconduct that would also be grounds for mistrial or reversal on appeal. (*In re Marriage of Steiner* (2004) 117 Cal.App.4th 519, 522.) In considering whether an irregularity warrants a new trial, the court will consider whether the irregularity was so prejudicial that it deprived the moving party of the constitutionally guaranteed right to a fair trial. (*Christie v. City of El Centro* (2006) 135 Cal.App.4th 767, 780.) A new trial on this ground may not be granted unless the court concludes there is a miscarriage of justice. (Cal. Const. art. VI § 13.)

An attorney’s misconduct may constitute an “irregularity” that warrants a new trial, but only if is reasonably probable that the party moving for a new trial would have obtained a more favorable result absent the misconduct or that the attorney’s misconduct was prejudicial. (*Fernandez v. Jimenez* (2019) 40 Cal.App.5th 482, 492 [result] and *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276 [opining that attorney’s misconduct was serious but not so pervasive or egregious that it prevented the jury from rationally considering evidence at trial].) Importantly, a party generally waives any right to a new trial based on attorney misconduct by failing to object during the trial to the misconduct of which the party was aware, and by not requesting a jury admonition or a mistrial. (*Fernandez v. Jimenez, supra*, 40 Cal.App.5th at p. 492.) A party who fails to object waives the claim of error unless 1) the misconduct was so prejudicial it cannot be cured by an admonition; 2) the request for admonition would have been futile; or 3) the objecting party had no opportunity to request an admonition. (*Sacramento Area Flood Control Agency v. Dhalival* (2015) 236 Cal.App.4th at 1315, 1339.)

Here, Plaintiffs notice of motion asserts grounds for a new trial under all seven of the statutory grounds under Code of Civil Procedure section 657, but the body of the motion does not provide any argument or reference to any particular ground. As Defendant points out, Plaintiffs memorandum makes only one broad reference to Section 657. The Court infers that Plaintiffs argument is that Mr. Even’s appearance as an out-of-state attorney who had been admitted pro hac vice is an irregularity that warrants a new trial. However, Plaintiffs do not point to any prejudice that they suffered as a result, and Plaintiffs conceded they did not object to Mr. Even’s appearance as the sole trial counsel on days 2 through 4 of trial.

As an initial matter, Plaintiffs have waived their right to a new trial for failure to raise the objection during the course of trial. Second, as Defendant points out, Plaintiffs reliance on *People v. Cooks* (1983) 141 Cal.App.3d 224 is misplaced, as that case only discusses the issue of pro hac vice in dicta when discussing an argument raised by one of the defendants that the court rejected. (*Id.* at p. 290.) Moreover, even if Plaintiffs made a colorable argument that Mr. Even’s conduct in connection with his pro hac vice status, Plaintiffs do not point to any prejudice suffered as a result of it.

Plaintiffs’ motion for a new trial is DENIED.

Defendant shall give notice.